The TRS, however, has the support of the CPI, which has won Munugode five times with the support of either the Congress or the TDP.

In 2018, Rajagopal, contesting as a Congressman, had secured a whopping 49 per cent of the votes in Munugode (his nearest rival, the TRS's Prabhakar Reddy, had only 38 per cent). Assuming that support base stays intact, closing the 11 per cent gap would require the TRS to net the entire Communist vote, including that of the CPI(M). The TRS also has to cope with anti-incumbency. So KCR is likely to lay out the goodies, besides doubling the Constituency Development Fund grant to Rs 10 crore. The BJP, on its part, finds inspiration in its success in the Dubbaka (2020) and Huzurabad (2021) bypolls. A triumph here will be the perfect prelude for 2023 for a party that had won just one of the 119 assembly seats in the 2018 polls and is looking to make a big statement by prising open the south from another flank.

For the Congress, holding on to Munugode is a matter of prestige, but its recent record inspires zero confidence. As many as 12 of its 19 MLAs had joined the TRS months after the 2018 polls, and it has drawn a blank in the four assembly bypolls held since—losing Huzurnagar to the TRS in 2019, and failing to make amends in Nagarjuna Sagar in 2021. The Huzurabad outing, just 10 months ago, was specially a disaster—the Congress candidate lost the deposit, scoring only 3,012 votes in a seat where it had secured 47,804 votes in 2018, finishing second after the winner, Eatala Rajender, the TRS candidate. In the bypoll following Rajender's resignation and shift to the BJP, the saffron party rode on his popularity and dealt a big blow to the TRS, winning with a margin of 24,068 votes. This time, the BJP hopes Rajagopal will do for it what Rajender had done in 2021. ■

FORK IN THE ROAD

March 3, 2002 | Bilkis Bano raped, 14 family members killed by mob

March 5, 2002 | Bilkis records statement to NHRC at Godhra relief camp

Nov 6, 2002 | Court refuses to accept the closure plea of police camp

February 2003 | Closure report resubmitted, accepted by magistrate's court

April 2003 | Bilkis seeks CBI investigation before SC

December 6, 2003 | SC orders transfer of case to CBI

August 15, 2022 | The 11 convicts walk free after remission

April, 2019 | SC orders Gujarat government pay Bilkis Rs 50 lakh as compensation

May 2017 | Bombay HC upholds life terms

January 21, 2008 | Special CBI court convicts 13 people, 11 awarded life term

August 2004 | SC transfers trial to Mumbai

April 19, 2004 | CBI files chargesheet against 20 accused

who have received a life sentence for an offence that can even carry a death sentence, or whose death sentence has been commuted under Section 433 into life imprisonment, cannot be released without serving at least 14 years in prison. Every state has a Sentence Review Board that exercises powers under Section 432.

In Bilkis's case, the nine-member committee comprised the Panchmahal district collector, the Godhra principal district sessions judge, the district social welfare officer, the Panchmahal police superintendent, the Godhra sub-jail superintendent, and four persons from civil society who were BJP members. The panel reportedly met four times, and unanimously decided to remit the convicts' sentence.

On August 23, the remission was challenged in the SC and a bench of Chief Justice of India N.V. Ramana has agreed to look into the matter. This was after a fair bit of negative publicity—a recent news report even cited how several of the convicts had often been out on parole spanning months, when they allegedly issued threats to prosecution witnesses in the case.

Initially stonewalled by the Gujarat police, an intervention by the National Human Rights Commission (NHRC) helped Bilkis approach the SC for justice. An NHRC team under former CJI J.S. Verma had first met Bilkis when they visited a relief camp in Godhra in March 2002. The NHRC had appointed former solicitor general Harish Salve to represent Bilkis in the SC. Salve argued for a fresh probe by the CBI and got the trial transferred to Mumbai in August 2004 after Bilkis alleged threats from the accused. It was the only Gujarat riots case to be probed afresh by the CBI.

On January 21, 2008, CBI special court judge U.D. Salvi convicted 13 accused, sentencing 11 to life imprisonment, after an in-camera trial—an order upheld by the Bombay High Court in May 2017. The SC in 2019 ordered the Gujarat government to pay a compensation of Rs 50 lakh, and offer a government job and accommodation to Bilkis—again, the first such order in a Gujarat riots case. ■